



JAMAICA CONSTABULARY FORCE

Standard Operating Procedures Reference Handbook on Criminal Investigation

Title: JCF Standard Operating Procedures Reference Handbook on Criminal Investigation	Number: JCF/CIB-HQ/MAN/SFs/0008/2021
Effective Date: December 3, 2024	Pages: 61
Review Date: December 1, 2024	Distribution: CIB HQ
Revision # 1	Process Owners: Deputy Commissioner of Police Crime & Security Portfolio
Rescinds: 01 December, 2012	
Authors: ACP CIB HQ	Owner: JCF
First Published: December 01, 2012	Review: Triennially

THE JAMAICA CONSTABULARY FORCE (JCF)

CIB REFERENCE HANDBOOK

PREFACE

This handbook has been prepared to assist members of the Criminal Investigation Branch (CIB) who are engaged in criminal investigation, by serving as a convenient reference, which they can consult from time to time together with the CIB Standard Operating Procedure (SOP) and CIB Manual.

Its content reflects clear and concise information on known procedures and other relevant matters concerning criminal investigation.

This handbook is not intended to cover all aspects of criminal investigation but instead, to keep members of the force abreast of the more critical issues that relate to the CIB. [As such, members of the CIB will be expected to be familiar with all of those matters covered herein. Although the handbook will be revised from time to time, CIB members should be aware that it is their responsibility to keep themselves updated with any recent developments in these critical areas.]

The use of this handbook should ultimately improve the level of professionalism expected of all members of the force, in particular, detectives.

SECTION A

THE POLICE SERVICE STATEMENT OF COMMON PURPOSE AND VALUES

The purpose of the Police Service is to uphold the law fairly and firmly; to prevent crime; to pursue and bring to justice those who break the law; to keep the Queen's Peace; to protect, help and reassure the community; and to be seen to do all this with integrity, common-sense and sound judgement.

We must be compassionate, courteous and patient, acting without fear or favour or prejudice to the rights of others. We need to be professional, calm and restrained in the face of violence and apply only that force which is necessary to accomplish our lawful duty.

We must strive to reduce the fears of the public and, so far as we can, to reflect their priorities in the action we take. We must respond to well-founded criticism with a willingness to change.

JCF VALUE STATEMENT

The Jamaica Constabulary Force is committed to the quality of its service delivery and the satisfaction of its internal and external customers.

We value:

- Our members as our most important resource

- Open and positive communication that encourages teamwork
- Respect and equitable treatment of all individuals
- Provision of Quality Service to all communities
- The needs of the country in all aspects of social and economic development
- The input of all citizens in the development and training of our members
- The need of victims of crimes and
- The example we set for the citizens of this country in the upholding of Law and Order.

HUMAN RIGHTS CONSIDERATION

Moral/Ethical Standard

Achieving a basic understanding of ethics is vital to considering options and making sound operational decisions, in whatever field of policing we operate at whatever level. The application of good ethical standards is paramount in proactive policing which often involves surveillance and methods of policing intrusive of the privacy of citizens. The use of criminal informants is particularly problematical; any activity conducted in secrecy carries the inherent risk of corruption. Operational activity, as a consequence of informant information, requires the exercise of sound judgement and the making of decisions we are able to defend and justify in court.

It is the responsibility of all personnel to strive at all times to exercise their powers within the highest ethical standards having regard to the rights of all parties concerned. It is intrinsic in the role of all supervisors that they advise and support staff to achieve this standard and to intervene when appropriate.

When considering operational action, analysis should be made of the background to the offences being investigated and the options available, namely, overt, covert, technical equipment etc, with full consideration of the implications of each course of action. In every scenario there are potential victims, particularly when utilising participating informants, and the safety and rights of those persons must be balanced against the public generally who have the right to expect the police to arrest known offenders. To re-emphasise the point, **we should only take positive action after full consideration and be prepared to defend our decisions before the courts.**

Confidentiality

Members should be aware that information obtained by them in the course of their functions and duties should only be disclosed in the furtherance of those functions and

duties. This obligation of confidentiality is enshrined in the Force Code of Ethics, which provides in part:

“Whatever I see or hear of a confidential nature or that is confided to me in my official capacity will be kept secret unless revelation is necessary in the performance of my duty”.

The manner in which some members of the force have handled information has eroded the trust and confidence of the public in general. Consequently, members of the public are reluctant to give information to the police. This behaviour militates against the police’s ability to successfully investigate crime. Where members of the CIB are not sure how to handle any type of information, they should communicate with the DDI or the Crime Officer who will give the necessary guidance.

These are some of the more serious repercussions resulting from the improper release of covert information by police to members of the public:

- The life or security of witnesses and family members is endangered
- The life of other members of the force is endangered
- The progress of an investigation is retarded
- There is a failure to recover vital evidence
- Dangerous criminals are permitted to roam the streets and commit mayhem in society
- Public confidence in the police and Justice System is eroded

RELEASING INFORMATION TO THE MEDIA

A member shall not without the consent of the Commissioner, publish or communicate to the press or any unauthorised individual any matter pertaining to the Force or any other matter in which such member is involved.

All official communication, whether from a private person or not, shall be regarded as strictly confidential. Neither the contents of the communication nor the name of the person conveying any information shall be disclosed without authority.

Except for the Force's newspapers, members are forbidden to take part directly or indirectly in the management of newspapers. They may (with the consent of the Commissioner) contribute articles upon subjects of general interest to any newspaper on issues, which cannot properly be regarded as political or administrative.

The Constabulary Communication Network (CCN) is the official arm of the Jamaica Constabulary Force (JCF) that has the responsibility for releasing information to the public. In an effort to facilitate timely and accurate dissemination of information, liaison officers are based in all the geographic divisions across the island.

Force Orders # 2236 Dated 12/04/90

DUTIES AND RESPONSIBILITIES OF THE DETECTIVE AND CIB AIDE

The duties of the Police under Section 13 of the Constabulary Force Act are:

- to keep watch by day and by night;
- to preserve the Peace;
- to detect crime;
- **apprehend** or summon **before a Justice persons found committing** any offence or **who they may reasonably suspect** of having **committed any offence**, or who may be charged with having committed any offence;
- to serve and to execute all summonses, warrants, subpoenas, notices, and criminal processes issued from any court of criminal justice or by any Justice in a criminal matter; and
- to do and perform all the duties appertaining to the office of a Constable, but it shall not be lawful to employ any member of the Force in the service of any civil process, or in the levying of rents, rates or taxes for or on behalf of any private person or incorporated company.

The extent of the duties and responsibilities of the Police are enormous, particularly that of the Detective and CIB Aide. They, like other members of the JCF, cannot be passive toward any matter requiring police attention.

There are however, certain areas of policing to which detectives are required to concentrate extra effort and energy, and to that extent, specialised training has been provided.

The basic duties and responsibilities of the Detective are:

- The prevention and detection of crime;
- Investigation of criminal offences;
- Statement and Report Writing;
- Arrest and detention of accused persons and suspects;
- Preparation and presentation of cases, (including attending to further enquiries as directed by the DPP and appearing as a witness when required).
- Keeping of crime and criminal records.

COURT DETECTIVE

The court detective is accountable to the sub-officer in charge of the court for the timely preparation of documents such as criminal records (CIB6, 6B, & 6C) germane to the defendant on trial before the court to which he/ she is assigned.

The expeditious investigation of all matters relating to the defendant or witness appearing before the court as required by the court, that comes under the purview of the detective.

To execute all fingerprint orders on the same day they are done or without delay.
Have prepared at all times, the antecedent report of all defendants prior to trial.

The CIB 6, which is the accompanying document for convicted criminal to prison, must be handed over to the sub-officer in-charge of court and the appropriate entries made in the register. NB The sub-officer receiving the CIB 6 will sign the register.

The detective is to ensure that proper returns are made for all convicted defendants and speedy transmittal of records to the Criminal Records Office.

The Court Detective will work closely with the Prosecution Liaison Officers (PLO) and support the effective delivery of justice, by ensuring prosecutions are completed without undue delay, and any issues affecting such, must be reported immediately to the relevant Crime Officer.

BENEFITS OF AN EARLY ARREST

It is essential to effect arrests of Wanted Persons at the earliest opportunity in the interests of justice. This will allow police to gather evidence and to effect prosecutions after obtaining evidence ‘*sufficient*’ on which to act. Delays could lead to witnesses failing to support investigations or they may be hard to find.

Another significant benefit relates to the reduction in crime. It is a proven fact that the majority of serious criminal offences are committed by a small number of persistent offenders and as such, an early arrest and conviction will have a significant positive effect on the crime situation. This will also increase the confidence of the people in Jamaica that the police are able to effectively and efficiently investigate crime by using our powers appropriately.

INTELLIGENCE INTERVIEWS

These should NOT be ignored and should be completed AFTER charges have been laid or before the suspect is released (their release should not be delayed pending such an interview). This interview should, wherever possible, be conducted by officers NOT connected with the original investigation, such as DIU staff, for independence from the investigative process.

POWERS OF ARREST

This policy will highlight the main powers of arrest; however, **it is the responsibility of each member of the police force to know their powers of arrest and to use them appropriately.** Consideration must always be given as to whether the arrest is justified and in addition are other options available, such as proceeding by summons must be considered.

- ***Constitution of Jamaica***
Chapter 111, Section 15.1.f -arrest on reasonable suspicion
- ***Common Law***
Arrest on reasonable suspicion for a felony.

- **Legislation**

Numerous Acts of Parliament passed and gazetted in Jamaica – **conditional powers** dependant on the wording of that power within that Act.

- **Common Law**

What constitutes a valid arrest is enshrined in the Constitution, but it is enshrining Common Law principles – See Section 15.1f and enunciated in **Christie v Leachinsky (1947)** A.C. 586 by Viscount Simonds who at page 587 outlined the following **five propositions as the test of what constitutes a valid arrest:-**

1. If a policeman arrests without warrant upon reasonable suspicion of felony, or of other crime of a sort, which does not require a warrant, he must in ordinary circumstance inform the person arrested of the true ground of arrest. He is not entitled to keep the reason to himself or to give a reason, which is not the true reason. In other words a citizen is entitled to know on what charge or on suspicion of what crime he is seized
2. If the Citizen is not so informed but is never less seized, the policeman apart from certain exceptions is liable for false imprisonment.
3. The requirement that the person arrested should be informed of the reason why he is seized naturally does not exist if the circumstances are such that he must know the general manner of the alleged offence for which he is detained.
4. The requirement that the person arrested should be informed does not mean that technical or precise language needed to be used. The matter is a matter of substance, and turns on the elementary proposition that in this country a person is prima facie, entitled to his freedom and is only required to submit to restraints on his freedom if he knows in substance the reason why it is claimed that this restraint should be imposed.
5. The person arrested cannot complain that he has not been supplied with the above information as and when he should have, if he himself produces the situation which makes it practically impossible to inform him e.g. By immediate counter-attack or by running away.

An arrest is accomplished by words and action indicating that the arrestee is now under restraint, but an arrest is not complete until the arrest is actually under the control of the arrester. There may be an arrest by mere words, by saying ‘I arrest you’ without touching, provided of course that the accused submits and goes with the police officer.

At Common Law a policeman may arrest without warrant;

- i. On his view:** When a felony, treason or breach of the peace is committed or attempted in the presence of an officer, for example murder, robbery, larceny.
- ii. On the charge of a third person:** It is the duty of a Constable, on a reasonable charge of felony being made to him by a private person against anyone else to take the supposed offender into custody. *Hedges v Chapman (1825) 2 Bing 523.*
- iii. On his own suspicion:** The policeman may arrest on reasonable suspicion of a felony whether a felony has or has not been committed.

If it should appear that no such offence has been committed, the arrest will be justified, provided it was made on reasonable suspicion. A Constable is justified in arresting upon a reasonable suspicion of a felony having been committed whether the reasonable or

suspicion are matters within his own knowledge or are facts stated to him by another. Police powers of arrest coincide with those of the citizen. He is thus a citizen in uniform.

- **Legislation**

For misdemeanour offences police must use other existing powers of arrest or consider proceeding by summons or warrant. Examples of these are;

- **Firearms Act**

Section 43(2) *Constable conducting search under section 43 (1) may arrest without warrant any person found on premises or in place whom he has reason to believe is guilty of an offence against this Act.*

Sections 39(3) 40(4) *A constable may arrest without warrant any person who refuses to declare his name and address under section 39(2) or whom he suspects of giving a false name or address or of intending to abscond.*

- **Constabulary Force Act**

Section 15: *It shall be lawful for any constable without warrant to apprehend any person **found committing** any offence punishable upon indictment or summary conviction, and to take him forthwith before a Justice of the Peace who shall enquire into circumstances of the alleged offence and either commit the offender to the nearest jail, prison or lock-up to be dealt with according to law or to take bail by recognizance, with or without surety in such amount as such he shall direct for his appearance on such day as he shall appoint, before a court of competent jurisdiction to be dealt with according to the law’.*

Section 16: *Any warrant lawfully issued by a Justice of the Peace for apprehending any person charged with any offence may be executed by any Constable at any time notwithstanding that the warrant is not in his possession at that time but the warrant shall, on the demand of the person apprehended, be shown to him as soon as practicable after his arrest.*

Section 18:- *“It shall be lawful for any Constable to apprehend without warrant any person known or suspected to be in unlawful possession of opium, ganja, morphine, cocaine or any other dangerous or prohibited drugs or any person known or suspected to be in possession of any paper, ticket or token relating to any game or lottery or drop pan or any game of a similar nature and to take him forthwith before a Justice who shall thereupon caused such person to be searched in his presence”.*

- **Dangerous Drugs Act**

*‘Any constable may arrest without warrant any person who **has committed, or attempted to commit, or is reasonably suspected by such constable of having committed or attempted to commit**, an offence against this Act, if he has reasonable ground for*

believing that the person that that person will abscond unless arrested, or if the name and address of that person are unknown to or cannot be ascertained by him.'

It should be noted that the **Road Traffic Act** provides the police with the power to stop vehicles and **Section 15 of the Constitution of Jamaica** provides powers to arrest '*if there is reasonable suspicion that the person **has committed, or is about to commit a crime**.....*'

USE OF FORCE

The instructions of the JCF Human Rights and Use of Force and Firearms Policy incorporate the fundamental rights and obligations enshrined in the Jamaican Constitution and international human rights instruments. In particular it reflects the principles set out in:

- United Nations Code of conduct for Law Enforcement Officials, 9G.A. res. 34/169, annex, 34 U.N. GAOR Supp. (no. 46) at 186, U.N. Doc. A/34/46-1979); and
- UN Basic Principles on the Use of Force and Firearms by Law Enforcement Officials, (Eighth United Nations Congress on the Prevention of Crime and the Treatment of Offenders, - Havana, 27 August to 7 September 1990, U.N. Doc. A/CONF. 144/28/Rev. 1 at 112-1990) (*See JCF Human Rights and Use of Force and Firearms Policy*)

USE OF DEADLY FORCE

The Police are given enormous powers in the execution of their duties to include the use of force, which may cause death or serious bodily harm. Hence, the force's policy, governing the use of deadly force stipulates that deadly force **SHALL NOT be used except as a last resort** in any situation in which such force is justified, namely:

- to protect the member or others from what is reasonably believed to be an imminent threat of death or serious bodily harm;
- to prevent the escape of a fleeing felon if all other means of effecting an arrest have been exhausted and the member reasonably believes that the escape of the felon will pose a significant threat to human life should the escape occur;
- to destroy an animal that represents a threat to public safety or as a humanitarian measure where the animal is seriously injured;

deadly force **SHALL NOT** be used in an attempt to arrest a misdemeanor.

The force policy also places controls on the use of firearms as follows:-

- Except for maintenance and training, the firearm shall not be drawn or exhibited unless there is reasonable cause to believe there is a necessity to use the weapon in conformity with force policy.
- Warning shots are prohibited
- Weapons shall not be fired from a moving vehicle unless under situation that poses an immediate threat to human life;
- Firearms shall not be discharged when it appears likely that an innocent person may be injured.

It is necessary for members of the Force to bear in mind at all times:

Justification	the factors that would justify the use of deadly force are present
Necessity	when all the circumstances are taken into consideration, is the use of deadly force necessary
Morality	would the use of deadly force in the particular circumstance be right
Legality	the use of deadly force in the particular circumstances can stand up to legal scrutiny
Proportionality	the threat to which the member is exposed is of similar proportion to that which the member intends to use.
Accountability	in every instance that a member uses deadly force, he/she is accountable

JUDGES RULES

1. Entitlement to Question

When a Police Officer is trying to discover whether or by whom, an offence has been committed he is entitled to question any person, whether suspected or not, from whom he thinks that useful information may be obtained. This is so whether or not the person in question has been taken into custody so long as he has not been charged with the offence or informed that he may be prosecuted for it.

2. Obligation to Caution

As soon as a Police Officer has evidence which would afford reasonable grounds for suspecting that a person has committed an offence, he shall caution that person or cause him to be cautioned before putting to him any questions, or further questions, relating to that offence.

The Caution shall be in the following terms:

“You are not obliged to say anything, unless you wish to do so, but what you say may be put into writing and given in evidence”

When after being cautioned, a person is being questioned or elects to make a statement, a record shall be kept of the time and place at which any such questioning or statement began and ended and of the persons present.

NOTE - Investigation strategy;
Contemporaneous Question and Answer interviews

Suspects should not be charged until AFTER a formal interview has been conducted, with their Attorney present (or a Justice of the Peace where no attorney is available or refuses to attend) and in accordance with Judges Rules.

Judges Rules 2, 3 (b) and (3c) should be strictly adhered to and the caution must be administered before any questioning commences. This must be noted at the top of the page.

The purpose of such interviews is to: -

- *Secure additional evidence by way of questions and answers,*
- *To assist to prove/disprove the suspects involvement,*
- *Afford the suspect the opportunity to give an early account of their knowledge/actions and*
- *Provide an opportunity to test the strength/reliability of any evidence/information obtained during the investigation.*
- *Obtain additional evidence/information relating to property/objects found in their possession, such as firearms (how they obtained the item, when, how etc.)*
- *Identify other persons involved in the crime or criminal activities.*

*In addition, the interview may provide new information that may make an identification procedure unnecessary (Special care **MUST be taken in any case involving ‘Identification issues’ and as such the Attorneys attached to Kingfish or the CIB MUST be consulted for advice**) i.e.*

- *The suspect may admit their identity/involvement,*
- *Place themselves at the scene(s)*
- *Provide confirmation that they are the same person described by the witness(s) (admitting same facts as outlined by the witness such as relatives, addresses, place/type of work, friends etc).*

PRIOR to any interview the Investigating officer (IO) MUST prepare an interview strategy. This can only be completed when all the relevant facts are known.

The officer preparing the strategy must consider the following points

1. *Points to prove in relation to the offence for which they are investigating,*
2. *Information provided by witnesses,*
3. *Additional information and/or intelligence surrounding the offences,*
4. *Articles/exhibits found at the scene(s), on arrest or at other places and connected with the investigation,*
5. *Confirmation that this is the same person as described by the witness(s) (Identification issues).*
6. *To obtain evidence in relation to the three key elements in any investigation – Motive, Opportunity & Conduct.*
7. *circumstances of any linked crimes (e.g. Ballistics/fingerprint matches with other crime(s), intelligence reports linking the suspect)*

All such interviews and investigations must be conducted expeditiously.

3. Obligations in respect of caution and further questioning when person charged or informed that may be prosecuted.

(a) Where a person is charged with or informed that he may be prosecuted for an offence, he shall be cautioned in the following terms:

“Do you wish to say anything? You are not obliged to say anything unless you wish to do so, but whatever you say will be taken down in writing and may be given in evidence”

(b) It is only in exceptional cases that questions relating to the offence should be put to the accused person after he has been charged or informed that he may be prosecuted. Such questions may be put where they are necessary for the purpose of preventing or minimising harm of loss to some other person or to the public or for clearing up any ambiguity in a previous answer or statement.

Before any such questions are put, the accused should be cautioned in these terms:

“I wish to put some questions to you about the offence with which you have been charged or about the offence for which you may be prosecuted. You are not obliged to answer any of these questions, but if you do, the questions and answers will be taken down in writing and may be given in evidence”.

Any questions put and answers given relating to the offence must be contemporaneously recorded in full and the record signed by that person or if he refuses, by the interrogating officer.

(c) When such a person is being questioned, or elects to make a statement, a record shall be kept of the place at which any questioning or statement began and ended, and of the persons present.

4. Written statements made after caution

All written statements made after caution shall be taken in the following manner:

(a) If a person says that he wants to make a statement, he shall be told that you intended to make a written record of what he says. He shall always be asked whether he wishes to write it down himself, what he wants to say. If he says that he cannot write or that he would like someone to write for him, a police officer may offer to write the statement for him. If he accepts the offer, the police officer shall, before starting, ask the person making the statement to sign or make his mark to the following:

"I wish to make a statement. I want some one to write down what I say. I have been told that I need not say anything unless I wish to do so and that whatever I say may be given in evidence.

(b) Any person writing his own statement shall be allowed to do so without any prompting as distinct from indicating to him what matters are material.

(c) The person making the statement, if he is going to write it himself, shall be asked to write out and sign before writing what he wants to say, the following:

"I make this statement of my own free will. I have been told that I need not say anything unless I wish to do so and whatever I say may be given in evidence".

(d) Whenever a police officer writes the statement he shall take down the exact words spoken by the person making the statement, without putting any questions other than such as may be needed to make the statement coherent, intelligible and relevant to the material matters; he shall not prompt him.

(e) When the writing of a statement by a police officer is finished, the person making it shall be asked to read it and to make any corrections, alterations or addition he wishes. When he has finished reading it he shall be asked to write and sign or make his mark on the following certificate at the end of the statement:

"I have read the above statement and I have been told that I can correct, alter or add anything I wish. This statement is true. I have made it of my own free will".

(f) If the person who has made a statement refuses to read it or write the above mentioned certificate at the end of it or to sign it, the senior police officer present shall record on the statement itself and in the presence of the person making it what has happened. If the person making the statement cannot read, or refuses to read it, the officer who has taken it down, shall read it over to him and ask him whether he would like to correct, alter or add anything and to put his signature or make his mark at the end. The police officer shall then certify on the statement itself what he had done.

NOTE - Investigation strategy;

Judges Rules provides police with administrative directions for conducting interviews and as such describes a process that should be adopted with Question and Answer interviews appearing prior to the taking of any 'voluntary' statements under caution.

Such statements provide an opportunity for the investigator to record an early account from a suspect, who wishes to make a voluntary statement, after advice from or in the presence of an Attorney. Statements in such cases are best taken in simple cases where the suspect wishes to provide their own account and the facts are not complicated.

This should be considered by the investigator as having the following limitations;

- Often self serving (suspects view and not able to be challenged with probing questions)
- Provides only information that the suspect wishes to be included
- Unlikely to answer all the points identified by the investigator in an pre-planned interview strategy
- Prevents probing questions being put.

In complicated cases or a series of crimes the preferred course of action should be to conduct a Question & Answer interview rather than a Statement Under Caution.

Both must be completed in accordance with Judges Rules.

5. Manner of dealing with statements made by co-offender when person charged or informed that may be prosecuted.

If at any time after the person has been charged with, or has been informed that he may be prosecuted for an offence, a police officer wishes to bring to the notice of that person, any written statement made by another person who in respect of the same offence has also been charged or informed that he may be prosecuted, he shall hand to that person a true copy of such written statement, but nothing shall be said or done to invite any reply or comment. If that person says that he would like to make a statement in reply, or starts to say something, he shall at once be cautioned as prescribed by Rule 3 (a).

6. Obligation of investigation officials (other than police) to comply with Rules

Persons other than Police Officers charged with the duty of investigating offences or charging offenders shall, so far as may be practicable, comply with these rules.

SECTION B DEALING WITH WITNESSES/VICTIMS

Initial contact with potential witness

The police officer is generally the first person to interact with a potential witness. He should:

- Be business-like and professional in his approach. Put all interpersonal relationship training into play.
- Let the potential witnesses build confidence in him.
- Brief the potential witnesses on the consequences of making a report, namely, that the potential witness will be required to:
 - make a statement in writing
 - identify the assailant where necessary
 - attend court whenever required to do so.
- He should maintain constant contact with the potential witnesses and let them know how important it is for him to know their whereabouts.
- The police must appreciate its role as the professional group, which in many cases has first contact with the victim.
- They must also appreciate that the focus on victims may affect what they do in relation to the victim as well as how matters are dealt with in relation to the victim.

Having regard to the nature of the offence and character of the witness, the investigator should make a determination at this early stage regarding the need for witness protection or other assistance.

Victim Support Programme (VSP)

The Victim Support Programme is intended to assist persons against whom certain offences have been committed, by providing emotional support, technical advice and mediation.

The police should see the Victim Support Programme personnel as the professional group charged with the responsibility to create a support base for crime victims. Hence, every effort must be made to allow VSP officers access to all relevant information necessary to perform their task.

- Parish Co-ordinators are given special approval from the Ministry of National Security and Justice that would allow access to relevant information.
- Parish Officer should allow direct access to crime diaries and/or police communications record
- A police officer in each divisional headquarters should be assigned to assist the VSP office with all necessary information.
- Where possible communication with crime victims should be done jointly between the police and the VSP parish office.

- The strengthening of the link between the VSP and the police through the police Community Relations arm.

Responsibilities of the police to the victims include:

- Explaining police procedure and the investigative process
- Informing victims about how to protect themselves
- Accompanying the victim to emergency medical services
- Providing information to crime victims about their rights
- Making necessary referrals
- Ensuring the property of the victim is safe
- Ensuring the victims are kept informed of the progress made
- Contacting the Victim Support Professional to provide "on site" assistance
- Establishing protocols to ensure that the Victim Support has access to as many victims as possible
- Establishing protocols for the proper detention and investigation of suspects, in order to protect the safety of victims

Witness Protection Programme

The witness protection scheme is designed to increase successful prosecutions through the protection of witnesses and their families. The scheme operates out of the Ministry of National Security and Justice. Such a scheme shall be used when:

- A witness or family member has been threatened:
- An actual threat to the safety of a witness or family member exists.

Each case shall be evaluated on its own merit based upon the imminence of the threat or the potential for violence. The scheme may provide for, at a minimum, periodic patrolling and security checks of the threatened person's residence, and in more serious matters, placing the threatened person in protective custody, or re-location as may be necessary.

How to access the Programme

If the investigating Officer is of the view that it is in the best interests of the case to place an individual on the programme, the officer should cause the witness to complete **Form A**, (which must be signed by the witness). The investigator is required to complete **Form A (1)**. Both forms should then be forwarded to the Officer in Charge of the Justice Protection Unit, CIB Investigations by the Divisional Crime Officer. The forms will then be routed through the ACP CIB to the Witness Protection Unit.

The Programme Director will contact the investigator in order to make initial contact with the witness. The appropriate action to be taken will be determined by the Director of the Witness Protection Programme in accordance with the Justice Protection Act,

CONDUCTING INTERVIEWS AND RECORDING STATEMENTS

Investigative Interview

Your first approach to the subject is very important as many people will be emotionally upset, angry or hostile.

Interview is the questioning of a person(s) who has or is believed to have information of interest to an investigation, or is suspected of having committed an offence. **Judges Rules must be observed in all circumstances.**

The purpose of investigative interviewing is to obtain accurate and reliable information from suspects, witnesses or victims in order to disclose the truth about a matter under police investigation and thereby allowing the police to take the appropriate course of action. The interview should always be approached with an open mind.

The Interviewer needs to have regard to the following:

- Planning and preparation

witness

In planning for a witness interview one should consider the following:

- (a) The location – suitability, time of day/night, tiredness/trauma of the victim/witness/suspect
- (b) Welfare issues e.g. how the person is going to get home after the interview
- (c) Background research – This will enable you to ask relevant questions

Suspect

In planning for the interview of a suspect the following should be considered

- (a) Visit the crime scene
 - (b) Read statements and other documentary evidence/information
 - (c) Analyse available evidence/information
 - (d) Make enquires prior to the interview
 - (e) Do a background search of the victim/witness/suspect
 - (f) Know the points to prove for the offence(s)
 - (g) Identify any potential Defence's that may be used (self defence, justifiable etc)
 - (h) The possible behaviour of the victim/witness/suspect
- Rapport Building - Deal with Victims /Witnesses/Suspects in a courteous Manner. This will increase the chance of obtaining the best evidence.
 - Active Listening - Concentrate on the interview and listen keenly to what is said
 - Appropriate use of questions - Know what to ask, how and when to ask it

Conducting interview

- Getting acquainted
- Motivating the subject
- Keep the subject talking
- Listen to what is said

Obstacles to Conversation

- Asking of specific questions about the offence at the outset
- Asking of close-ended question that is questions that will result in yes/no questions
- Do not use leading questions when interviewing witnesses
- Asking another question before the subject has completed answering the previous question

Encouraging Conversation

- Open-ended questions assist witness in recalling events at their own pace, whom, what, when, where, why and how.
- Allow witness/suspect time to consider questions and answers without interruption
- Non-directive approach

For best results

- The interviewer should have a full knowledge of the Judge's Rules, particularly caution obligations. Be mindful also of the right to legal representation e.g. legal aid and when a guardian should be present.
- Location of conducting the interview is very important in obtaining good results
- Welfare - see to the welfare of the interviewee, this will assist in building confidence and enhance the communication process.
- Background Research – A thorough knowledge of the investigation is essential, including a background research into the incident [and witness/suspect], this will assist in determining the outcome of the interview.

NB The interviewer does not necessarily have to accept the first answer given during an interview.

Children/Juveniles (Administrative Direction # 4)

As far as practicable, children (under the age of 18 years) whether suspected of a crime or not, should only be interviewed in the presence of a parent or guardian, or in their absence, some person who is not a police officer and is of the same sex as the child. A child or young person should not be arrested nor interviewed at school if such action can possibly be avoided. When it is found necessary to conduct the interview at school, this should be done only with the consent and in the presence of the head teacher or his nominee.

Unless the parent is implicated in the offending in some way, all possible steps should be taken to notify the parents of the child that the child is to be interviewed, and to give them the opportunity to be present.

Mentally Handicapped Persons (Administrative Direction # 5)

If it appears to the Police Officer that a person, (whether a witness or suspect), whom he intends to interview has a mental handicap which raises a doubt as to whether the person can understand questions put to him, or which make the person likely to be especially open to suggestion, the Officer should take particular care in putting questions and accepting the reliability of answers. He should direct his initial questioning to whether the person understands the process, caution, (if appropriate) and his rights to legal aid etc.

As far as practicable, and where recognized as such by the police, a mentally handicapped adult (whether suspect of crime or not) should be interviewed only in the presence of a parent or other person having his care, custody or control, or an independent, non-police person, such as a social worker.

The conditions of interview or arrest of mentally handicapped children and young persons are governed by Administrative Direction 4.

Any document arising from an interview with a mentally handicapped person of any age should be signed not only by the person who made the statement but also by the parent or other independent observer. As the reliability of any statement or admission made by a mentally handicapped person may still be subject to challenge, all necessary steps should be made to verify and corroborate the statement or admissions.

Foreign National (Administrative Direction # 6)

The investigator should evaluate the witness' ability to speak, comprehend and read English (in conjunction with the witness) at an early stage of discussion. If English is not the witness' first language, the statement should be made in the witness' native tongue, in which case:

- An interpreter should take down the statement in the language in which it is made;
- The statement should be read and signed by the maker and not by the interpreter;
- An official English translation should be prepared and provided as an exhibit with the statement of original language.

An oral statement made by an accused interviewed through an interpreter can only be admitted in evidence if such evidence is given by the interpreter. The officer conducting any such interview should ensure that the interpreter will be available if required to give evidence and that he/she makes his own notes. If for any reason the interpreter does not

make his own notes he should be asked to initial the record of the interview in the notebook of the Police officer.

Investigators should record a statement from the interpreter setting out qualifications, length of time, relevant experience as an interpreter, and the process used in recording the statement.

FIVE PART WITNESS STATEMENT

Training is now being delivered in this new concept and for key witnesses, for serious offences, a suitably trained officer (Level 1 Core Skills) should be utilised and the statement taken from the victim/witness, otherwise officers must consider the following points when taking a statement;

- Listen to the story before you begin writing.
- The recorder should not coerce or prompt the maker.
- Statement should be recorded in the person's own words and should not be interpreted into the more formal language.
- It should be taken in order of sequence of event, stating day, date, time and place of occurrence.
- Value of article stolen and identifying marks should be stated.
- Points to prove the offence relevant to that witness should be borne out in the statement.
- Description should reflect peculiarity of the suspect, not only clothing or hairstyle.
- If the witness knows the suspect, this should be clear from the statement, which should detail the nature and extent of that knowledge.
- Where the witness is required to refer to documents, ensure that they are clearly described and marked with an identifying number, which is used in the statement. If necessary, copy documents may be annexure to the statement.
- It should be given to the maker to be read, or should be read to him/her.
- It should be signed by the maker immediately after the last line and should be dated.
- If the maker is unable to write, he/she should be asked to make his mark (usually with an (X)), which must be witnessed.
- If the statement is written on one or more sheets of paper, each sheet should be signed by the maker.
- A certificate of the maker should be written at the end of the statement

TURNBULL TRUE TEST TO APPLY TO A WITNESS STATEMENT

- **Amount of time under observation**
- Distance
- Visibility
- Observation impeded
- Known or seen before
- Any reason for remembering
- Time lapse between observation and Identification Parade
- Error material discrepancy

Required Certification

On Monday2001 I attended the X police station and gave the above statement. I read it or it was read over to me at my request, I have been told that I can correct, alter, or add anything I wish. The statement is true; I have made it of my own free will.

Declaration

The statement consisting of X number of page(s), is true to the best of my knowledge and belief and I make it knowing that if it is tendered in evidence I shall be liable for prosecution if I have wilfully stated in it anything which I know to be false or do not believe to be true.

NB: Frequently the need arises to record a further statement in order to provide clarity to an investigation. Investigators should endeavour to record same and not to view this as an area of weakness in his/her investigative ability. The subsequent statement should not be commenced as an addendum to the original statement. It should make reference to the making of the original statement.

INVESTIGATOR'S STATEMENT

Begin with name and other **credentials**

- State where you were and the time report was received;
- State exactly, what was reported to you and your subsequent action (**do not write he/she told me something**);
- Ensure that the necessary ingredients/points to prove the offence(s) are embodied in the investigator's statement.
- If the investigator conducted searches or otherwise obtained evidence, he should make specific reference to the circumstances and chain of custody in his statement.
- Ensure accused was informed of his/her rights to legal representation/Legal Aid, and document same in your statement.
- Record the name of the Attorney/Duty Counsel who was contacted, date and time.
- Must be signed by the writer.

The under mentioned declaration is to be included on all witness statements.

Required Declaration

NB. For all witness statement, investigator's statement and further statement

This statement consisting of **x number** of page(s) is true to the best of my knowledge and belief and *I make it knowing that if it is tendered in evidence I shall be liable for prosecution if I have wilfully stated in it anything which I know to be false or do not believe to be true.

DEALING WITH THE SUSPECT/ ACCUSED

JCF Standard Operating Procedures Reference Handbook on Criminal Investigation

Interview or Caution Statement

The officer recording such an interview/statement should be fully cognisant of the Judges Rules and in particular Judges Rules 2, 3a, 3b, and 4.

This should be conducted in the presence of an Attorney/Duty Counsel and at least one other witness.

Ensure that a JP or an Attorney is present before recording.

In keeping with the provision of the Legal Aid Act, where it has become clear that the availability of an attorney or duty counsel cannot be obtained, consideration should be given to reverting to the use of a JP and for children (under 18 years) an appropriate adult (member of the family, friend, pastor etc., of his/her choice where possible).

Appropriate notebook/station diary entries should be made to capture all the relevant activity relating to any attempt to contact an attorney of his/her choice, a JP or family/appropriate adult etc.

QUESTION AND ANSWER

Judges Rules 2, 3 (b) and (3c) should be strictly adhered to and the caution must be administered before any questioning commences. This must be noted at the top of the page.

Investigators must be aware that the obligation to caution arises when there are reasonable grounds for suspecting that the person may have committed the offence. As such, the caution must be administered after arrest or if that point is reached in informal discussions prior to the formal Question and Answer. The person is always formally cautioned again at the commencement of the Question and Answer, and after any breaks in questioning.

- The investigator should be properly prepared for the question and answer session.
- There is no limit to the number of questions to be asked, however, the questions should be pointed and relevant to investigation at hand.
- If the right to silence is exercised by the accused, the police can still put questions but should ensure to record the non-response.
- There should be other witnesses to the proceedings.
- The investigator must have regard to the condition of the suspect, and ensure that adequate arrangements are made for medical care if required and appropriate entries made in the prisoner's medical journal and other records.
- At the end of the process, the questions and answers should be read over to the accused and signed by him/her upon agreement of its content.

On conclusion of the process the following certificates should be affixed:

Certification

The questions and answers numbering from page 1 to..... were read to me. I have been told I can add alter or delete anything I wish. The questions and answers are correctly recorded. I gave the answers of my own free will

Sign:

Witness:

The above questions and answers numbering from 1 to were recorded by me at the Kingston Central Police Station on the date, between ...am andam/pm. I read them over to and told him/her that he/she could add, after or delete anything he/she wished. He/she made no correction, alteration, or addition and signed to its correctness.

Signed

Investigator

CAUTION STATEMENT

Where a Caution Statement is to be taken special care must be taken to;

- Ascertain whether or not the confessor would write the statement him/herself.
- The statement should be recorded in the language used providing that it can be understood, such as Patois.
- There should be no open spacing in the statement
- The recorder should not prompt the maker or allow same to occur.
- Questions should only be asked to facilitate understanding.
- Any corrections to errors made in the body of the writing, should be initialled by the maker and the bottom of each page signed by the maker and witnessed by the officers present.

Certification

On Tuesday 2001 I gave this statement to the police at the X police station. It was read over to me at my request or I read the statement and sign my name to it. I was told that I could correct, alter, or add anything I wish. The statement is true; I have made it of my own free will.

NB A caution statement may be rendered inadmissible in evidence if:

- The accused was not cautioned
- Threats, force or otherwise coerced to do so
- Promise or offered reward
- Statement not taken in the confessor's own words
- Confessor was questioned during the statement or questioned unnecessarily.

WHERE SUSPECT REFUSE TO SIGN

JCF Standard Operating Procedures Reference Handbook on Criminal Investigation

If after the questions and answers were read to the suspect/accused or they were read by him/her, he /she refuses to sign to the questions and answers document, then the senior officer present should be asked to endorse the document accordingly.

TREATMENT OF SUSPECTS/ACCUSED

Rights of suspect/accused

- Every suspect or accused at any stage of an investigation should be allowed to communicate and to consult privately with an Attorney and in the case of a foreign national, with his Consulate.
- Whenever a prisoner is being escorted by a member over any long period of time or distance, every effort must be made to have such prisoner supplied with his regular diet as though he was confined to an institution.
- Whenever persons are arrested they should be charged without delay and thereafter released on bail or placed before the next sitting of the court.

Legal Aid Act and Regulations

The Legal Aid Act makes it mandatory for the police to perform the undermentioned in all cases of arrest.

- Where a person is detained at or charged with an offence and brought to a police station or lock-up, the officer detaining the person or making the arrest shall inform him of his right to legal aid and to representation by a duty counsel.
- A person who is unable to afford an attorney-at-law of his choice may request the services of a duty counsel.
- Where a person requests the services of a duty counsel, the police officer to whom the request is made shall contact the first available duty counsel on the roster, and where a duty counsel cannot be contacted, the police officer shall contact the Legal Aid Council which shall assign a duty counsel.
- Justices of the Peace (JP's) will be utilised where attorneys refuse or fail to attend, ideally two JP's should be present.

Members should ensure that they are familiar with these obligations.

PERSONS IN RESPECT OF WHOM ARREST SHOULD NOT BE EFFECTED

Certain persons should not be arrested by reason of age or diplomatic status. They are:

- Children under 12 years old;
- Diplomatic and Consular Mission and Technical Assistance Agencies;
- Members of staff and families of Head of Missions;
- Representatives attending international conferences;
- Reigning sovereigns.

Whenever the police detect the commission of an offence by any person in respect of whom diplomatic immunity may be asserted, protocol must be observed, which requires that an arrest can not be made. The incident should be documented in a report format and routed through the regular channel to the ACP Administration. It will then be forwarded to the Ministry of National Security and Justice, which will send the file to the Ministry of Foreign Affairs and Foreign Trade for action.

Use of Summonses/Arrest Guidelines

When the police are in possession of sufficient evidence to place an accused before the court, he may proceed by arrest or summons. Whilst both procedures seek to secure the attendance of the accused before the court, consideration should be given to whether proceeding by way of summons would ensure the person's attendance, or whether arrest would be justified in the circumstances. Regard should be had to the following:

- The seriousness of the offence;
- The likelihood that the accused will respond to the summons;
- The likelihood that the accused will abscond and the need to secure court imposed bail and reporting conditions;
- Whether the identity of the accused and his place of residence have been satisfactorily established.

When it has been determined that an arrest is justified, the detective should follow the procedure set out below. In particular, as detectives do not wear uniform, they should be in possession of their JCF Identification Booklet at all times, and be prepared to produce it to any member of the public, whether requested or not.

- Conduct proper investigation upon receipt of a complaint;
- Produce JCF Identification Booklet to suspect;
- Apprehend suspect;
- Inform suspect of the offence for which he is being arrested;
- Caution the person;
- Search person and/or possession, **(authority, see appendix relating to search)**
- Ensure his safe custody en-route to and at station;
- Inform suspect of his rights to Legal Aid or an Attorney of his choice;
- Make the necessary entries in the appropriate registers;
- Place the accused before the court at the earliest time.

Identification Parade (Formal/Other forms)

Identification of the defendant is an integral component of all criminal trials, as the prosecution must prove not only that the crime was committed, but also that it was committed by the accused. [*In many trials it will be the main issue in the proceedings].

Circumstances under which Identification parades should be held:

- Where the witness does not know the defendant prior to the commission of the offence.
- If the witness is unable to provide substantial details that demonstrate that he/she knows the perpetrator, then an identification parade should be held.
- When the defendant requests a parade.
- In cases of disputed identification.
- Where the eyewitness knows the assailant by an alias which may not be unique to him
- Where prior knowledge of the suspect by the witness but the amount of time, which has elapsed between the last sighting of the suspect by the witness and the occasion of the incident, has been long.
- Where there is prior knowledge, but the number of prior sightings of the suspect by the witness is small and or the occasion was insignificant or unremarkable.

Witnesses asked to view an identification parade should be able to provide a description of the offender, and should be of the opinion that they could recognize the person and this should be included within the witnesses statement.

Identification parades are regarded by the courts as the fairest means of obtaining identification where the suspect is not known to the witness. Parades will be conducted by an independent police officer, of at least the rank of Sergeant and they are known as the Identification Officer. The Identification Officer decides on the identification process to be utilised and this is likely to be a Video Identification in the first instance, although they will decide based on the facts, suitability of the different options available, including the practicality of conducting each type of parade. The investigating officer is not permitted to participate in the parade or take the witness to/from the actual parade and as such, independent officers from the investigation should be used.

Where the suspect refuses to take part in a parade (which is entirely voluntary), the Identification Officer may seek to obtain an alternate identification; e.g. group, confrontation etc. Resort to any other form of identification is predicated on the refusal of the suspect to take part in a formal identification parade. As such, the member must carefully record in his diary the circumstances of any request and refusal. If the refusal is conveyed by his Attorney, request confirmation in writing.

Identification Parades (Implications for the detective)

Role of the investigating officer

- It is the responsibility of the investigating officer to initiate the Identification Parade by applying to the Divisional Officer who is in-charge of the division in which the parade is to be held.
- The application form (**ID 2A**) should contain all the necessary information e.g. name of accused, the offence, date the parade is requested and general circumstances of the case, together with the First Description of the suspect(s) (Form **ID 2B**) as provided by the witness(s).
- The investigating officer should not be present at the parade and an officer, independent of the investigation, should support the Identification Officer conducting the parade.

Role of the detective assigned to the parade

At the end of the parade the assigned detective should take statements from witness regarding the identification.

ADDITIONAL ROLE OF THE DETECTIVE**Children/Juveniles (under the age of 18 years) Charged with Criminal Offences**

- Inform parent / ward forthwith
- Try to establish age, parent/ ward will assist with documentary proof
- Observe Administrative Direction # 4

SECTION C

Managing Confidential Informants

The use of Confidential Informants is critical to the police success in preventing and detecting crime. Therefore, the police should know how to properly manage informants. The undermentioned principles provide guidance to the police in the area of criminal informants.

- All officers are actively encouraged to recruit informants.
- The police should control the informants, don't let them control you.
- While seeking intelligence, it is important that you provide direction and task informants to elicit information you need to know.
- Never trust an informant - remember what they are and treat them as such.
- Every witness, prisoner and whoever you come into contact with is a potential informant, take every opportunity to cultivate sources.
- Always be aware of an informant's motivation and that it may change over time.
- Test your informant regularly.
- Always ask yourself how does your informant know what he/she is revealing.
- Train your informant - pseudonym, and security etc.
- Never be afraid to terminate your informant if it becomes necessary.
- Follow as a rule of thumb, the informant should provide information at least equal to, and usually of greater criminal significance than that which they may be involved in.
- Never promise your informant anything.
- Be aware of these:
 - Is your informant getting more information than he is giving
 - Is your informant trying to recruit you
 - Even when tasking informant never give more information than is necessary.
- If an informant is a volunteer and has exceptionally good access/placement to or within a criminal group - look beyond the given motive, there may be a more sinister one.
- Don't pay money out of your own pocket.
- Register your source with NIB as per the Force Policy.

SECTION D

Crime Pattern Analysis

All investigators should acquaint themselves with some degree of crime pattern analysis, particularly Operation Statistics. Crime analysis supports a number of functions, including patrol, special operations, tactical intervention, investigation and planning. Investigators must always seek to identify links between criminal activity and the relationship between crime and other factors such as location, employment and communication method.

This approach facilitates focussed data collection and analysis method to enable the making of informed decisions and the taking of informed action by:

- Identifying evolving or existent crime patterns and trends;
- Forecasting future crime occurrence;
- Providing investigative leads.

Suspect Profile

It is important for the police to be involved in the process of suspect profiling which will serve to improve the police knowledge on criminals and their activities. Suspect profiling is encouraged because it can enhance the police's ability to solve a wide range of crimes. It suggests therefore that the police should endeavour to gather all information that they possibly can on individuals suspected to be involved in criminal activities.

Trouble Spots

All geographic divisions are encouraged to identify "hot spots" in their police locals. Crime pattern analysis should be used to identify hot spots in order to develop appropriate policing strategy to combat criminal activities. This process can assist the police in issuing the appropriate advisory to the public for them to take precautionary measures.

Repeat Victimisation

Repeat victimisation occurs when the same person, premises or organisation suffers from more than one criminal incident over a specified period of time. As repeat victimisation can ruin the confidence of the public in the police, the role of the Crime Prevention Officer is very important. The risk of repeat victimisation is greatest in the period immediately following the incident, as the offender may have sighted other property on the premises, or it may have been particularly easy to gain access.

Modus Operandi

Modus Operandi is a mode of behaviour that is associated with an individual or a way of operation. By studying the behavioural pattern of criminals, some association can be made with criminals and their activities. This can greatly assist the police in their approach to investigations as it may reveal the likely time of offence, type of tool usually used, how the suspect normally approaches victims or premises, etc.

GENERAL INVESTIGATION

Each crime has its own uniqueness, requiring the investigator to exercise his initiative and ingenuity. There are however, universally established approaches to criminal investigation

The police must seek to collect all evidence and relevant material to prove the charge. All direct and circumstantial evidence must be obtained.

- If the statement refers to other persons who were present when the offence was committed, find the persons and ascertain if the persons are willing to give statements, then have them recorded.
- In the collection of other evidence and relevant material, the ingredients of the particular offence must be borne in mind, for example, evidence of recent complaint in sexual offences (DNA, Clothing, condom, bedding etc).

As soon as possible, where available, scientific evidence should be obtained. This is of particular importance where the case rests primarily on circumstantial evidence. These include:

- Medical Certificate
- Ballistic Certificate
- Forensic Certificate
- Finger Print Evidence
- Dental Record
- [Handwriting Analysis]

It is important to collect other relevant evidence, which may not be scientific in nature but is nevertheless relevant, such as photographs and sketches. Where a weapon is identified in a report made, try to obtain a proper description of the weapon and where possible seek to locate and recover same as quickly as possible.

Visit the scene of crime and make notes of important details such as:

- Distances
- Lighting
- any other thing that might assist the investigation

Police must take charge of crime scenes and secure the scenes until all relevant evidence is obtained. Know and implement the JCF Major Crime Scene Policy. Do not trample on

evidence. Make a note of the scene of crime in your notebook, together with the location of significant items. [Wherever possible, photographs should be taken before objects are moved].

Instruct the Forensic Crime Scene Officer/photographer to capture the crime scene that is the general locus as far as possible including any streetlights or other evidence that may relate to identification or goes to prove other aspect of the offence. This may be used to discredit or corroborate the testimony of a witness; e.g. A pair of slippers in a photograph that belonged to a witness called by the defence to distort the murder scene, was used to discredit her testimony and show that she could not be believed.

Ensure that a statement is taken from the FCSI/Photographer.

Investigators must record all relevant occurrences and informal contact in their notebook. These entries should be precise and made as events occur.

PROCEDURE FOLLOWING DETERMINATION TO ARREST SUSPECT

- Know your powers of arrest and if non is available consider a summons/warrant. Use the name of the accused that the witness(s) supplied.
- Know your Judges Rules and when to apply the various Cautions. Reasons - if accused makes an admission to you and the rules are not complied with, the court may exclude that admission.
- If you did not apprehend the accused, get a statement from the person who did, stating when and where accused was apprehended and if accused said anything when he was held.
- When questioning the accused ascertain if he goes by any of the names the witness supplied, in addition include any of the other identification factors supplied by the witness(s), e.g. school, relatives, friends, addresses, employment etc.
- If the accused denied that he was present when the offence was committed, caution him and ascertain his whereabouts at the time.
- Collect statements from person(s) referred to by the accused as to his whereabouts at the time of the incidents.
- Ascertain whether accused has any outstanding arrests/charges or previous convictions, date, place, nature of arrest/charge or previous conviction and sentence imposed. This becomes particularly important in major crime cases, because it may determine whether bail is offered in the first instance and later affect the sentence they will receive. Knowledge of previous conviction will determine whether or not the accused is to be treated as an Habitual Criminal.

- Form CR12 must be completed and signed by the accused.
- Make sure the condition of the accused when taken into custody is recorded in the Charged and Prisoner Property Book. Reason - this information becomes relevant if any allegations are made concerning his health, treatment and or detention and this may invalidate any interview or caution statement obtained from the accused. An extract of the information from this book should be certified and made a part of the case file. Collect a statement from the maker of the relevant entry.

INVESTIGATION OF SPECIFIC OFFENCES

MURDER

Points of proof

- (i) That some definite person is dead;
- (ii) That death was otherwise than in the course of nature;
- (iii) Death took place within a year and a day from the commission of the fatal act
- (iv) By whom death was caused or accelerated;
- (v) That death was caused by the felonious act of the person with malice aforethought.

Investigation

- If you are the first policeman on the scene, establish if the victim is dead, IDEALLY a Doctor should be called to pronounce life as extinct. Take a statement or obtain a certificate to this effect from the Doctor
- Take control of the scene and prevent unauthorised persons from entering the crime scene. (only persons with investigative interest should be allowed to enter)
- Try to identify witnesses and suspects
- Have body and scene forensically examined, including photographs (investigator should provide the necessary directive to the FCSI/photographer).
- Have the body fingerprinted, this can assist with background investigation and elimination purposes.
- If the body is in a state of decomposition thus rendering facial or fingerprint identification impossible ask the Pathologist to remove the sternum (breastbone) at the Post Mortem.
- Once the body has been removed a thorough search should be made of the area to locate evidence which might be left on the scene. (Body should not be removed before it is photographed, except in exceptional circumstances)
- Background research should be done on victim, this can assist an investigation
- Whether the scene is external (outdoor) or internal (inside building) the investigator should ensure that the scene is properly processed by the Scene of Crime Officers (FCSI/SOC)
- Always prepare a sketch of the scene
- Statement must be recorded from person who identified body at Post Mortem

- If identity is not established have the photograph of the deceased published in the Police Gazette and in the print and electronic media through ACP CIB.

SHOOTING / WOUNDING WITH INTENT

Investigation

- Visit the crime scene
- Search the area for projectiles and spent cartridges
- Identify potential witness
- Record statements as quickly as possible
- Establish identity of victim/deceased
- Inform DDI/Crime Officer
- Contact the scene of crime section
- Analyse and make use of all information received
- Enter the incident in the relevant books/computers system
- Pursue your investigation with an open mind and follow up all lead

SEX OFFENCES:

Rape

Points of proof

- (i) Penetration;
- (ii) No consent (consent induce by force, fear or fraud is not consent in law);
- (iii) Recent complaint (Corroboration)

Carnal Abuse

Points of proof

- (i) Penetration as in rape;
- (ii) Age of child (16 years and under)

Investigation

- Listen to complainant or the person making the report and appreciate same
- Contact the Centre Investigation Sexual Offences and Child Abuse
- Visit scene if practicable
- Look for sign of struggle on victim and at scene
- If there was a struggle have fingernails of victim scraped by a doctor for DNA analysis
- Victim must be medically examined, vaginal swab and smear must be taken by a doctor

- Clothing worn by victim at time of the incident must be taken by investigator.
- All evidence collected must be properly labelled, sealed and taken to the Forensic Laboratory without delay.
- Scene to be searched properly for evidence which may be left by culprit, hair fibre, used condom etc.

BREAKING OFFENCES

BURGLARY

Points of proof

- (i) Night (between 7.00 p m & 6.00 p m);
- (ii) Dwelling house (of another);
- (iii) There must be a breaking and entering, breaking can be actual or constructive;
- (iv) Intent to commit felony

HOUSE BREAKING

Points of proof

- (i) Building (any building);
- (ii) Breaking and entering;
- (iii) The commission of a felony

HOUSE BREAKING WITH INTENT (Section 41(a) of the Larceny Act)

Points of proof

- (i) Dwelling house. Same as in burglary;
- (ii) Night. Same as in burglary;
- (iii) Intent. Mere intent to commit a felony is sufficient where the felony is actually committed, the proper charge is not house breaking, but the particular felony which is committed

HOUSE BREAKING WITH INTENT (Section 41 (b))

Points of proof

- (i) The building same as House Breaking as well as a place of divine worship;
- (ii) Breaking and entering. Unlike in the case of burglary and house breaking under section 40, the breaking must precede and cannot be subsequent to the entering;
- (iii) Intent. Mere intent to commit a felony is sufficient. Where the felony is actually committed the proper charge is not house breaking with intent but the particular felony which was committed.

Investigation of Breaking Offences

- On receipt of report you must visit scene
- Check exterior for sign of force entry, ie look for broken window, damaged door
- locks or door, missing louvre blades etc/
- Identify tools used if left at scene
- Interview complainant and record statements
- Take the necessary steps to protect scientific evidence
- Notify the Scene of Crime Section
- Establish how the crime was perpetrated and collect evidence accordingly.
- Consider how the suspect entered and exit the premises.
- Record the necessary statement(s).
- Analyse all information and explore all possible leads

LARCENY

Points of proof

- (i) Taking can be actual or constructive;
- (ii) Carrying away (asportation);
- (iii) Without the consent of the owner;
- (iv) Fraudulently – means dishonestly;
- (v) Without a claim of right made in good faith;
- (vi) Intent to deprive owner permanently (animus Furandi);
- (vii) Capable of being stolen.

ROBBERY

Points of proof

- (i) Taking (must be felonious);
- (ii) Carry away (asportation) – accused must be in complete possession of property;
- (iii) From the person or in his presence;
- (iv) Against will of person – property must have been taken or delivered under the compulsion of fear;
- (v) Fear

Investigation Robbery/Larceny

- Visit scene to verify authenticity of report
- Make enquiries to ascertain identification of witnesses or culprits
- Get full description of property and suspect from complainant during interview.

- If weapon was involved get full description from victim/witness
- Record the necessary statements
- Pursue the necessary leads with a view of making an arrest.

FRAUD

The expression “fraud” is used to cover a variety of offences which often involve deception, (by fraudulent misrepresentations), dishonesty, and the obtaining of financial gain or loss to another, (although this is not always the case). Fraud can also encompass the causing of an officer of the Crown to act in a manner in which he would not have done, such as by deception, causing the issue of false driving licences.

As such, it is not appropriate here to provide the points of proof of a variety of offences. There are common features to many frauds, however, which may require the investigator to consider the following:

- What representations were made to the victim;
- Whether the representations can be proved to be false;
- Whether the victim actually relied upon the false representations;
- What the victim had authorized the suspect to do, (where for example, monies have been invested on behalf of the victim);
- The form in which property passed from the victim to the suspect’s control;
- The money trail.
- Where the fraud is practised on an institution, it is important to establish who had particular responsibilities and duties within the institution, namely, the systems in place, and respective responsibilities for writing cheques, completing ledgers, access to crucial documents, etc.
- The possession by the suspect of certain documents may themselves implicate him in the fraud.

As the investigation may involve following the money trail, the investigator should be familiar with the means of obtaining information from Banks and Financial Institutions, (Ministerial direction, pursuant to paragraph (f), Schedule Four to Banking Act and Financial Institutions Act, and after proceedings have commenced, section 37 of the Evidence Act). He should also take particular care in the gathering of documentary evidence, which may provide useful handwriting or fingerprint evidence, and be familiar with the various forensic procedures, which may be carried out.

SEARCHES – SOURCE OF POWER AND EFFECTIVE SEARCH PROCEDURE

Powers of Search (Person)

The search of a person is legally justified either, when the person to be searched has consented to be searched, or when the searcher is acting pursuant to some legal authority. Searches must only be conducted in accordance with existing powers, including the Common Law power to search for evidence and to prevent harm/injury.

Circumstances under which the police can conduct lawful searches:

There are several statutory provisions, which give the police the right to search a person, property or premises, under the authority of a warrant in some cases and without a warrant in other cases.

Section 17 of the Constabulary Force Act gives the police the power to search persons on or coming off a ship in port on reasonable suspicion that the person has uncustomed or prohibited goods.

Section 18 of the Constabulary Force Act also gives the police the right to apprehend without a warrant a person known or suspected to be in possession of dangerous drugs or Peaka Peow or Drop Pan ticket (illegal gambling) and to search the person before a Justice of the Peace.

Section 19 of the Constabulary Force Act gives the police the power without warrant to stop and search vehicles, the driver and passengers in the vehicle, if the vehicle is suspected to be carrying stolen goods, dangerous drugs or gambling instruments or appliances.

Section 24(1) of the Dangerous Drugs Act authorizes any constable having reasonable cause to suspect a conveyance has been used in the commission of an offence against the Act to search the conveyance and persons therein without warrant.

Various powers to search premises under authority of a search warrant may be found in the Dangerous Drug Act, Forgery Act, Larceny Act and Unlawful Possession of Property Act. The Dangerous Drugs Act also provides that a Sergeant or above may authorize entry and search of premises where he is satisfied that an offence against the Dangerous Drugs Act is being committed in any premises, [see section 21(4)]. For further arrest and search powers, refer to the attached Chart.

The Constabulary Force Amendment Act 1994 introduced special powers for preventing or detecting crimes, which are, contained in Part IIA of the Constabulary Force Act. Provision is made for establishing of a cordon and imposition of a curfew in a particular locality. Whilst conducting investigations pursuant to these powers, section 50B(5) provides that no powers of search shall be exercised under subsection 50B(4) without a warrant in relation to a dwelling-house except for the purpose of apprehending any person upon reasonable suspicion that he is in the course of committing or has committed or is about to commit, an offence.

Common Law remains available to be used by investigators although this should be only used in rare cases. These powers include searching for evidence at crime scenes, hot

pursuit of an offender, search for wanted persons etc. (special care must be exercised in the use of such powers).

People are likely to be searched under the following circumstances:

- As a routine, where they voluntarily enter a building or area and the search is a condition of entry.
- At a security or post incident check point legally imposed.
- When reasonable grounds for suspicion exist that the person is in possession of stolen or prohibited articles.
- When a person is taken into custody
- As a precautionary measure whilst person is in custody.

Constraints

The following are the principle constraints with regard to the search of persons:

- The search must be conducted by a person of the same sex as the person to be searched.
- Generally, there is no power to require a person to remove clothing in public other than an outer coat, jacket or gloves. Out of the public eye and if not voluntarily done, there may be power to require the removal of other outer clothing.
- Intimate body searches, involving the internal examination of body orifices, other than the mouth, may only be carried out by a medical practitioner
- A search should only be conducted to the detail necessary to discover what is being sought.

Searches of the Person

Great care must be taken when carrying out a search of a person as there is the inherent risk of alleged brutality, assault or unethical treatment. Furthermore, the police should be mindful that most people searched are innocent, therefore should search in a manner which demonstrates their professionalism and courtesy. These factors make it imperative that searches of people are:

- Only conducted in circumstances, which can be legally justified.
- Carried out to procedures which minimise the risk of fabricated accusations against the police.

Procedure

The search should be conducted as described below. If possible the searchers should work in pairs, with one person doing the physical searching and the other observing both the searcher and the subject and guarding.

- (i) The searcher should not stand directly in front or behind the subject to avoid being kicked, kneed or head butted.
- (ii) The searcher should not be distracted or intimidated and should avoid eye contact with the subject.
- (iii) The observer should watch for non-verbal communications, e.g. increased nervousness or tension.
- (iv) When weapons are being used, the searcher should avoid crossing the line of fire of the covering officer
- (v) Ideally the subject should be standing with legs slightly apart and arms extended sideways. Avoid spread-eagling the subject against a wall. Later it may be necessary to swab the subject's hands for forensic traces and no opportunity should be given for any remains to be rubbed off.
- (vi) The search should be conducted quickly in a systematic way from head to foot, down one side and up the other, covering all parts of the body, front and back. Attention should be paid to pockets and waistbands where weapons may be at hand. Care must also be taken to search quickly all external body depressions such as the small of the back, armpits, crutch areas and closed hands.
- (vii) The searcher should never pat the subject but use a stroking squeezing movement and thus feel for foreign objects through clothing. When searching limbs, both hands are used with thumbs and index fingers touching, where practical.
- (viii) Any baggage or removed clothing attributable to the subject must also be searched. Such items should be treated with respect.
- (ix) The use of equipment such as hand or archway metal detectors, explosive and baggage X- ray machines can be an assistance at times especially when processing large numbers of people at access control points.

Searches of Vehicles

In searching a vehicle the police must be courteous, efficient, thorough, tactful and quick. They must not be put off searching the interior of vehicles by the presence of children and babies, pets, old people, young ladies, apparently sick or drunk persons.

The following are suggested procedure for vehicle search:

- (i) The drivers and passengers disembark from the vehicle with their possessions.
- (ii) All occupants are searched with their possessions.

- (iii) The search should begin with the interior.
- (iv) While the vehicle is being searched the driver/owner or driver may watch the whole operation. Any change in demeanour should be noted.

For all vehicle searches, the vehicle should be divided into five areas:

- Interior of the vehicle; airbags, compartments, under/behind fascia.
- Outside of the vehicle;
- Boot or cargo area;
- Engine compartment;
- Underside of the vehicle

Searches of Buildings

Standard building search procedures can be considered in four phases, namely, Planning, Entry, Search and Exit.

Planning

The following points are particularly relevant to standard building searches and should be considered for inclusion in operation orders and briefings.

- (i) Address and precise location (using GPS if available).
- (ii) Building description including identification and structural details, any outbuildings and garages, and plans if available.
- (iii) Details of previous searches at the same or nearby addresses.
- (iv) Surrounding area environment and local mood (possibly refer to Community Liaison Officers and police / community consultative groups).
- (v) Details of occupants and owners - numbers, sex, age, CRO number and previous convictions, violent, health, employment.
- (vi) Who is likely to be there at the time of the search
- (vii) Occupants' vehicles - type, colour, plate number and location.
- (viii) Dogs or dangerous animals present which may require specialist response.

- (ix) Authority to search / warrant.
- (x) Probable point and method of entry.
- (xi) Manner, in which exhibits will be collected, recorded and marked or labelled.

Entry

It may be necessary for a cordon to be positioned prior to the start of the search, to prevent the escape of suspects from the area, to witness any attempts to dispose of evidence and to ensure the security of the search team.

It is frequently necessary to enter the building rapidly in order to catch persons in physical possession or to prevent them disposing of evidence by, for example, flushing down the toilet. In some cases it may be necessary to monitor all wastewater and sewage systems from buildings prior to entry by the search teams.

After briefing and before entering the building or search area, the search pairs are allocated their initial areas of responsibility. Depending upon size of the task one pair will normally be allocated upstairs and one downstairs. Prepare to enter the premises by lining up the teams as follows:

- (i) Team leader and officer in case or investigating team representative.
- (ii) Upstairs search pair
- (iii) Attached agencies
- (iv) Downstairs search pair. (May be directed to enter via back door if no cordon in place).
- (v) Team scribe and exhibits officer if present.

SECTION E

CRIME SCENE MANAGEMENT

Forensic issues

In order to secure the best possible evidence and thereby increase our chances of charging and convicting offenders, it is vital that **all personnel** have the highest possible level of knowledge of crime scene management, exhibit handling and subsequent forensic procedures.

Uniform staff attending initial crime reports are responsible for making a professional assessment of the likelihood of obtaining physical evidence. If that evidence is of a forensic nature, ie, fingerprints, blood, fibre etc, then they must ensure that a request is made for a Scenes of Crime officer/Forensic Crime Scene Investigator to attend.

In order to make a professional assessment, it will be necessary to conduct a thorough examination, taking care not to disturb or contaminate evidence. A thorough questioning of witnesses, when available, will facilitate this process. It should be established whether objects have been moved by the offender and whether the witness has replaced them or cleaned up.

It should be established whether entry and egress have been made via the same point and from whom elimination fingerprints may need to be taken. Tool marks, footprint/tyre impressions are also important in establishing suspects identity and all efforts should be made to ensure that this type of evidence is captured.

Any stolen property recovered at the scene or nearby should be examined for fingerprint/DNA either at the scene or if not possible at a police station.

The security of property at crime scenes when no complainant is in attendance is the responsibility of the officer attending the scene. Every effort should be made to identify a person with whom responsibility can properly be left, if this cannot be achieved there may be implications for the Police budget. On no account should premises or vehicles be left unsecured and liable to be subject to a second offence. Consider obtaining a JP to be present to witness the search in such circumstances and the arrangements made to safeguard the property.

Investigators should approach the crime scene investigation as if it will be their only opportunity to preserve and recover these physical clues. They should consider other case information or statements from witnesses or suspects carefully in their objective assessment of the scene. Investigations may change course a number of times during such an inquiry and physical clues, initially thought irrelevant, may become crucial to a successful resolution of the case.

Suspicious Death Crime Scene

Every death is to be regarded as suspicious until evidence indicates to the contrary. The containment and control of the scene is essential if evidence is to be preserved. This includes control of Police Officers and even on occasions Doctors, pathologists etc.

All officers attending at a suspicious death should bear in mind the following:

- Select a route of approach to the body least likely to contaminate evidence, use the same route as an exit.
- Any other person entering or exiting should use the same route.
- Establish a cordon of the scene and mark the entry / exit point.
- Contact supervisors, Detective Inspector and Senior Officer.
- If possible prepare a sketch plan to brief your supervisors etc.
- Request the attendance of a Police Pathologist or a doctor, brief him/her and only allow disturbance of the scene sufficient to certify death.
- Request the attendance of Scenes of Crime Officer; until that person arrives **you are in charge of that scene unless otherwise relieved by a supervising officer.**
- Do not under any circumstances leave the body or scene unattended.
- Establish identity of and if possible keep all witnesses in the vicinity of the scene until assistance arrives. **Always attempt to identify who found the body and who was the last person to see the deceased alive.**
- Try to establish the identity of the deceased – **do not search the body to do this.**
- If there is a suspect at the scene, have them removed to a Police Station as soon as possible, and **note anything the suspect may say. Do not allow removal of clothing unless it is obtained for examination.**
- Under normal circumstances the body should not be covered as this will affect its temperature and make establishing the time of death problematical, it may also contaminate forensic evidence. Consider using screens or sheets to provide a barrier between the body and onlookers.

- On occasions this may be inappropriate, where for example the body is in full public view. If the body has been covered already or it is decided to place it under cover, then that cover must be treated as a forensic exhibit and the time it was put on the body recorded and recovered, sealed and sent to the forensic lab for examination where appropriate.

Crime Scenes Involving Firearms (See Recovered Firearms SOP)

Where firearms have been used at a crime scene, investigators should be conscious of the potential evidentiary value of the relevant firearm and any recovered fired bullets. Apart from any identifying serial numbers, the firearm may bear latent fingerprints or DNA and should be carefully handled by lifting through the trigger guard or other rough area incapable of retaining fingerprints. Extreme care should be taken in retrieving fired bullets from where they have lodged in ceilings, walls or floors at the crime scene so as not to mark the bullet and affect the evidentiary value of the striations on the body of the bullet. (Striations are the markings, which enable the ballistics expert to match the fired bullet to the weapon used.)

The exact location and condition of the bullet, together with details of the material pierced, depth of penetration, irregularities in size and shape, approximate angle of impact, and any other relevant matters of assistance to the expert technician should be recorded. The investigator should also record the exact location of a discharged bullet or cartridge case in his sketch of the crime scene.

When a bullet is lodged in a body, the investigator should advise the surgeon of its potential value as evidence, and request that he exercise caution in probing and recovery so that it will not be damaged.

Under no circumstances should the recovered firearm, bullets or cartridge cases be marked by the investigator. The principles to be adopted when handling evidence generally are discussed below.

Swabbing for gunshot residue

When a firearm is discharged it leaves detectable residues on the shooter's hands. Investigators should be aware of the Administrative Guideline applicable to Swabbing notwithstanding that they will not be performing the procedure themselves.

Swabbing of the hands of persons shot and injured/killed by the police must only be done by a qualified officer from the Scenes of Crime Unit or if one is unavailable, by an officer so qualified from an adjoining division. Officers in charge of the initial investigation must ensure that these instructions are adhered.

The following describes the procedures for collecting and preserving gunshot residue:

- Wash your hands or put on a pair of plastic gloves

- Moisten two cotton swabs in diluted (5% Nitric Acid) and thoroughly swab the back of the suspect's right and left hand.
- Place swabs in a plastic bag and label with your initial, date etc.
- Repeat the above process for the right palm, the back of the left hand and the left palm areas of the suspect hands.
- If a rifle or handgun was used by the suspect, swab facial cheek area – right and left.

If a spent casing is available, swab the interior using plain water, not acid, and place swab in plastic bag and label, "Casing".

Persons conducting swabbing should avoid contact with eyes and wash area immediately following swabbing.

Importance of DNA and other Forensic Evidence

Investigators should be aware of the important role played in the criminal investigation process by forensic and other scientific evidence. This includes fingerprint, handwriting, gunshot residue, ballistic examination, analysis of trace evidence and DNA. As a consequence, members must always be conscious of the need to identify material which may respond to forensic examination and to ensure that it is preserved, not contaminated, or does not lose its forensic value.

Crime Scene Officers/Forensic Crime Scene Investigators will be primarily responsible for the proper collection and processing of such material, however, members attending a scene must act quickly to ensure potential material is not contaminated, and may be called upon to seize potentially valuable exhibits, such as firearms.

Investigators should not fail to follow-up on forensic examination merely because they have identified a suspect who has made admissions, or have obtained a statement from an eyewitness. On occasion, the admissions may be excluded from evidence, or the eyewitness may retract their statement or even disappear. In those circumstances, a failure to have obtained other evidence will lead to the dismissal of the case.

DNA Evidence

Members would be aware that DNA evidence has been used in recent times to identify true perpetrators of crimes, but also to exonerate an individual wrongly accused. In the UK, United States and many other countries DNA analysis has been used to identify suspects from evidence samples taken many years before. DNA analysis is now available in Jamaica, and is performed at the Government Forensic Laboratory, 2 ½ Hope Boulevard, Kingston 6.

DNA, which is also referred to as a "genetic fingerprint", exists in biological materials such as blood, semen, skin cells, bone, saliva and perspiration. As individuals leave DNA evidence on many items, the crime scene may yield many possibilities for potential examination. Environmental factors existing at the crime scene such as heat, sunlight,

moisture, bacteria and mould may all affect the value of the DNA. Contamination at the crime scene by contact with another individual's body fluids, (such as by sneezing, coughing or touching) such evidence may also occur. The need, therefore, to ensure that the potential DNA evidence is not contaminated or destroyed at the scene, and is properly obtained and secured is crucial.

The chart below demonstrates potential sources of DNA on various types of evidence. (It is reproduced from the US Department of Justice publication, FBI Law Enforcement Bulletin, November 2000 edition).

Evidence	Possible Location of DNA on the Evidence	Source of DNA
Baseball bat	Handle, end	sweat, skin, blood, tissue
hat, bandanna, or mask	Inside	sweat, hair, dandruff
Eyeglasses	nose or ear pieces, lens	sweat, skin
Toothpick	Tips	saliva
tape or ligature	inside/outside surface	skin, sweat
Bottle, can or glass	sides, mouthpiece	saliva, sweat
“through and through” bullet	Outside surface	blood, tissue
bite mark	Individual's skin or clothing	saliva
Fingernail, partial fingernail	Scrapings	blood, sweat, tissue
used cigarette	Cigarette butt	saliva

Members should be aware of the potential value of forensic examination of items found at crime scenes such as those listed above, and to take steps to ensure their careful preservation and collection if required.

EVIDENCE HANDLING AND EXAMINATION

Members will obtain evidentiary material from a variety of sources in the course of their investigations. These will include the crime scene, searches of persons, vehicles and premises, items voluntarily provided and material produced under compulsion, (such as fingerprints obtained by court order or banking information by Ministerial Direction).

In the case of items recovered from a crime scene, search of person, vehicle or search of premises pursuant to search warrant, it is **CRUCIAL** that the investigator be able to subsequently establish:

- The exact location in which the exhibit was found and who located it;
- That the exhibit has been preserved in the state in which it was located, and has not been marked or tampered with in any way, (with the exception of forensic examination);
- The chain of custody, including movements for forensic examination.

To ensure that the investigator is able to establish the above, great care must be taken in the recording of the location of the item, handling (to preserve forensic value), labelling, transmission, analysis, retention and ultimate production in evidence. Systems, consistent procedures and standard documentation must be established to be utilised in every case with the expectation that all investigators will adhere to such guidelines.

If proper, consistent procedures are not followed, valuable forensic evidence may be lost, or the court (or jury) may have difficulty accepting police evidence regarding the location and condition of certain evidence.

The following general principles should be followed in respect of searches of premises pursuant to warrant (or police authorization such as under the Dangerous Drugs Act), and are generally applicable (with some modification) to other intrusive searches and scenes of crime.

Search of premises pursuant to warrant – preliminary issues

Resources

Members of the search team should be equipped generally for the proper conduct of searches with adequate exhibit bags and boxes, labels and gloves. If available, one-time seals for evidence bags should be utilised. Photographic or scene of crime assistance should be present or available on call. If the warrant holder is anticipating that specialist ICT assistance will be required, or force (if authorized) may be necessary to open receptacles, he should make the necessary arrangements.

The search team should be briefed on the investigation and the scope of the warrant to enable them to make determinations about relevance and whether items fall within the scope of the warrant. The warrant holder (or executing officer) should record the details

of the proposed search and the names of all members assisting in the search in his diary. If the station maintains a Search Warrant Register, he should enter the details of the warrant, issuing officer, issue and expiry date, legislative source of power, investigation name and subject premises in the Register. Following execution, (or lack thereof), an appropriate notation should be made in the Register. Individual members should also make a record of the date, time, premises, and name of the warrant holder or officer in charge of the search.

Exhibits Officer

It is always preferable for one person to act as the exhibits officer, with responsibility for recording the location and seizure of various items, allocating an exhibit number, description, completing the property seizure record and taking custody of all exhibits. The appointment of an exhibits officer ensures that a consistent, (both in description of items and allocation of number) and contemporaneous record of all seized items is created. Continuity is also addressed from the outset.

The Exhibits Officer should be appointed prior to commencement of the search.

Property Seizure Record (PSR)

A standard form of official property seizure record, should be used by the Exhibits Officer. The use of such a form will assist in the development of consistent and accurate recording techniques, and should make provision for the recording of the following:

- (i) Investigation number or reference;
- (ii) Address of premises to be searched;
- (iii) Date and time of commencement and conclusion of search;
- (iv) Name of Executing Officer/Regulation number;
- (v) Reference to warrant or source of power to conduct search;
- (vi) Name and signature of nominated Exhibit Officer;
- (vii) Details of location of item and seizing officer;
- (viii) Accurate description of item;
- (ix) Unique Exhibit number attributed to each item;
- (x) Provision for recording the details and signature of the occupier of the premises and acknowledgement of search;
- (xi) Separate column to enable recording of return of certain items;
- (xii) Provision for recording to whom documents have been returned;
- (xiii) If possible, the document should be a multi-copy document, to enable a copy of the completed record to be supplied to the occupier at the conclusion of the search.

Allocation of Unique Exhibit Number

The JCF policy should be followed for all exhibits. The numbering of exhibits will be of much greater assistance to investigators and prosecutors if it is “intelligent”, that is, conveys information relating to the finder. For example, “**LG/1**”, could be used to indicate the finder – **LG** for **Leslie Green** and **1** for the **item number**. **David Peter Harris** would be **DPH/1**. The Unique Exhibit number should be utilised throughout the investigation when documents are referred to witnesses or suspects or referred to in statements, charts or databases and the original finders exhibit number will also be described.

Where two officers, on an investigation, share common initials one should add another letter and retain that throughout that investigation – *example*, **LG/1** becomes **LAG/1**. The finders consecutive numbering of exhibits remain throughout the investigation and if **LG** recovers 5 exhibits (2 at a scene, 2 at a later search of premises and 1 for the interview Q&A, then that would represent **LG/1** to **LG/5**. Other items may have been found by others officers and they would have been identified and numbered according to their own consecutive numbering system. The statement provided by **LG** would then account for a total of five (5) exhibits found.

Conduct of the search

In certain circumstances, the location of items is so significant that photographs should be taken to record the location prior to seizure. This is particularly so where the item has been concealed. Where photography is unavailable, the seizing officer may consider that a diagram of the premises and location of the item would be of assistance.

Prior to any movement or handling, the member must determine whether the item has any potential forensic value requiring extra care in handling or the involvement of the scenes of crime officers. In addition, certain items may be delicate or require special handling or storage. If in any doubt as to appropriate handling procedures, seek advice from the scenes of crime officers. Any handling should be kept to a minimum in any event, and gloves should be worn.

Each item should be placed in an exhibit bag with label attached and taken to the Exhibits Officer for recording. **No marking should be placed upon the item itself**. If the size of the item prevents it being placed in an exhibit bag or plastic package, a label may be affixed to the item, taking care not to obscure any relevant writing or information or affect any potential forensic value.

The Exhibits Officer should record the name of seizing officer, location details, description and unique exhibit number in the property seizure record and take custody of the item. If available, the one-time seal should be affixed. The unique exhibit number, date, seizing officer and investigation number should also be entered on the exhibit label. This procedure should only be departed from if the scenes of crime officers determine that it is necessary to immediately remove the item.

Whilst not an evidence handling issue, the importance of recording significant occurrences or conversations with suspects and others during the course of a search should be stressed. For example, if a quantity of cash is located concealed in a bedroom, those present should be asked to whom it belongs and their responses recorded. Answers provided or comments made at this point will often differ from later, considered responses.

Acknowledgement of Search/Seizure

At the conclusion of the search, the Executing Officer or Property Officer should request the occupier of the premises to certify that the property seized has been accurately and fully recorded in the PSR. Where the occupier refuses or is unable to so certify, such refusal or inability should be recorded on the PSR.

Post Seizure Handling

Following seizure, the Exhibits Officer should ensure that all seized items are entered in the Station Exhibit Register. Where a detailed PSR has been created, inclusion of the document should suffice, without the need for reproduction of the details in the Exhibit Register.

The treatment of the exhibits from this time will depend in part upon whether the station/squad has a central registry and exhibit registrar or whether individual investigators retain control of seized material. Regardless of system, the storage must be secure with confined access to preclude allegations of tampering and to prevent unauthorized access. Investigators should seek specialist advice where retention may result in deterioration of the item.

The handling of documents is dealt with in more detail below. It is however important to recognise the potential forensic value of documents by wearing gloves and minimizing handling. When original documents are to be retained, a full set of photocopies should be made at the earliest opportunity to reduce excessive handling.

Referral for Forensic analysis

It is also at this time that a determination should be made as to whether items should be subjected to any forensic examination. Handling should be kept to a minimum, and cotton gloves worn until any such tests have been conducted.

The movement of any items conveyed for forensic or scientific analysis and the details of the exhibit escort must be recorded in the Exhibit Register and the diaries of the investigating officer and exhibit escort. Investigators must also complete Laboratory Submission Form to accompany any request for forensic/scientific analysis. If possible, the exhibit escort should deliver and collect the examined item to minimize the number of persons involved in the chain of custody.

Whenever seized items are removed from the exhibit registry or storage for photocopying, forensic testing or to be shown to suspects/witnesses, care should be taken to ensure that the exhibit is not separated from its labelled exhibit covering, which bears its unique exhibit number.

Return of exhibits

Investigators have a general obligation to return seized items from the person from whom they were seized when the reason for the seizure no longer exists or it is not proposed to tender the item in evidence. In certain circumstances, further retention may be justified on the basis that the item may be subject to forfeiture. Investigators should always wait until after the expiry of any statutory appeal periods before returning items which have been or could have been relied upon in evidence.

As stated, the return should be to the person from whom they were seized, (unless possession would be illegal). The Defendant is not entitled to return of items not seized from him merely because they relate to him. Similarly, items returnable to the defendant should be returned to him or his solicitor, not to any friend or relative on his behalf unless arranged in writing by the solicitor.

Appropriate notations should be made on a copy of the PSR to be endorsed by the recipient, and entries made in the Exhibit Register.

Investigators should be conscious of the need to return original documentation to third parties such as financial institutions. Such entities will not actively seek the return of original documents, and it is the duty of the case officer to ensure that original documents are returned when no longer required, or at the conclusion of proceedings. Investigators should also be aware of the duties of financial institutions in respect of retention of records pursuant to relevant legislation.

Seizure, Retention and Return of Monies

The adoption of strict handling guidelines in respect of the seizure and retention of monies will serve to ensure the integrity of the exhibit and protect police officers from allegations of impropriety.

When monies are first located, consideration should be given to taking photographs to show the actual location, particularly when the monies are secreted. Under the Proceeds of Crime Act any sums over J\$100,000 may be subject to 'Cash Seizure' and a strict timeline of 72 hours is laid down for the service of specified documents and as such immediate contact must be made with the Constabulary Financial Unit (CFU) or Financial Investigation Division (FID) for advice and support.

Following the determination to seize, the monies should be counted in the presence of the occupier of the relevant premises prior to sealing in an exhibit bag. A second officer should re-count the seized monies in the presence of the seizing officer. Counting may

only be postponed where the forensic value of the exhibit would be affected by such handling. If possible, the seizure and counting of the monies should be video recorded. Acknowledgement of the seizure by the occupier is particularly important in the case of monies.

Upon return to the station, a record should be made of the serial numbers of the monies by hand or photographs.

Where monies are not required to be kept 'in specie', (namely, in the form in which found), they should be lodged in an appropriate trust account prior to the end of the working day and the Constabulary Financial Unit (CFU) must be consulted without delay.

Requirement to keep money 'in specie'

Where monies may be required as an exhibit or in cases of doubt, advice must be sought from the Director of Public Prosecutions; otherwise the funds should be paid into an approved bank account for safe keeping.

General arrangements have been made through FID with the Bank of Jamaica for monies required to be retained 'in specie' to be lodged in these circumstances. Such monies should be lodged **prior to the end of the working day** with an appropriate notation made in the Exhibit Register and case file. Where a central registry is established, banking or lodgement of monies in specie is the responsibility of the Exhibit Registrar. If monies cannot be lodged prior to the end of the working day, the property officer/case officer should ensure that arrangements are made for the safe custody of the monies.

It is the responsibility of the case officer to ensure that the Exhibit Registrar is advised that seized monies are required to be retained 'in specie', rather than banked in the normal course.

Document Handling and Examination

Whilst investigators should take special care in the seizure and handling of all exhibits, they should not disregard the potential value to be derived from documentary exhibits. As many crimes are financially motivated, the existence of documentary exhibits and the development of financial investigations will become increasingly important.

Documentary exhibits can yield fingerprints or handwriting, which may provide a crucial link between the suspect and the commission of the offence. In some circumstances the very existence of the document or the location of the document in the possession or under the control of the suspect will be important. As such, the need to carefully record the location and take care in the collection of potential documentary exhibits is as important in that investigation as the collection of a firearm in a shooting. DNA evidence may also be available from the envelope.

The general evidence handling guidelines referred to above apply to documentary exhibits. The following should be emphasized:

- (i) Members of the search party should be briefed on the various persons, entities and key issues arising in the investigation to enable them to consider the evidentiary value of documents encountered. Whilst determining relevance of documents can be difficult, members should be aware that the seizure of individual items should be justifiable. Any queries should be referred to the case officer.
- (ii) The property seizure officer should allocate a description to the document which will enable third parties to identify it, for example, letter dated 10/10/99 from James Smith to Bob Brown regarding Merger. It is inadequate to describe any document as “letter” or “document” or “box of documents”. The description should be allocated at the time of seizure unless the quantity of documents seized does not permit. The PSR is a far more useful document if it comprises a full seizure record.
- (iii) Intelligent numbering of items is crucial when large numbers of documents are involved. Such numbering will assist investigators in their assessment of the value of documentary exhibits by reference to source without continual reference to a PSR. (These requirements may be modified if the investigators are utilising a computerised bar-coding or electronic scanning and numbering system which is employed upon return to the station).
- (iv) Cotton gloves should be worn by seizing officers, and items should not be handled other than is necessary. Documents should not be folded or stapled;
- (v) On occasion, the location of a document in a file will be important, necessitating the seizure of the entire folder. Care should be taken by the officer in charge of the search that documents are not extracted from folders or files where that location could be relevant;
- (vi) Seized items should not be marked in any way. They should be placed in a plastic document envelope or exhibit bag with a label affixed. Care should be taken that completion of the label does not imprint the document;
- (vii) Photocopies of relevant seized documentary items should be made following seizure to be used for general investigative purposes to avoid excessive handling of the originals.
- (viii) Any movement of original items, such as removal for forensic testing, should be recorded;
- (ix) Where investigators wish to obtain handwriting and fingerprint analysis of documentary exhibits, they should bear in mind that the chemicals applied to develop latent fingerprints may affect indentations and ink writing on the document. Accordingly ink or handwriting analysis should take place prior to fingerprint testing;
- (x) Where documents are to be shown to witnesses or a suspect in the course of a record of interview, the original should be used, unless the original is required for forensic examinations. The interviewer should use the description and number previously allocated to the exhibit to ensure there is no later confusion as to which documents were shown or acknowledged in the interview. If necessary, copies can be used during the interview, in which case they should be signed by all

- present and marked with a unique reference during the interview and produced as additional exhibits.
- (xi) Investigators must take care when dealing with original documentary exhibits that they are not misplaced, lost or separated from their exhibit envelope and label;
 - (xii) Adequate arrangements must be made for the storage of documentary exhibits to preclude tampering or loss.

Where handwriting evidence is an important aspect of the investigation, members should consider sources of handwriting standards which will enable the expert to conduct his analysis. He should have regard to documents submitted to employers, government departments, (customs; immigration) which may be adequate. Examiners ordinarily require an original standard for comparison (not a copy) and a sample of handwriting, rather than a mere signature.

Searches of persons/vehicles/crime scenes

The principles outlined above and the rationale for ensuring the proper recording, preservation and retention of evidentiary material are equally applicable to other intrusive searches and searches of crime scenes. The aim is for the investigator to be able to establish that an item was located in a particular place, was seized, retained and made subject to forensic examination (if applicable) in circumstances such that the location and integrity of the forensic value of the item cannot be called into question.

Whilst notations in a member's diary should suffice for a search of the person, the PSR in conjunction with a sketch should be utilised for searches of vehicles and crime scenes, and the entry in Register, lodgement with Exhibit Registrar, subsequent handling and return apply to all seized items.

Where evidentiary material is provided voluntarily or by direction, (such as Ministerial Direction pursuant to the Banking Act), a list of items obtained should be prepared as a receipt, with a copy to the provider. The member should retain a copy of the receipt and direction (if applicable) on his file. If the items are originals they should be entered in the Station Exhibit Register and treated thereafter as other exhibits.

SECTION F

CASE PREPARATION

The investigator must bear in mind at all times that they are presenting a case and not just a case file. After all the investigation is complete then he should prepare his case file, which should include:

- All relevant statements and other materials.
- Summary of the facts.
- Whether there is any outstanding evidence to be collected, for example; Medical Certificate.

- Completed file ought to be submitted to the court's office before the date the accused is scheduled to attend court.
- CR 12 must be included in the file

All ballistic and medical certificates must be served three (3) clear days, excluding weekends and public holiday on the accused or his counsel. Failure to do so may result in the delay of the case commencing. Advice of the Clerk/Crown Counsel must be obtained prior to this service.

The certificates when served must be duly endorsed by the person who served it stating the time, place, date of service and upon whom it was served. Endorsement must be signed by the person who served the certificate.

The name of the investigator must be clearly written on the front of the Information and in the body of the information.

Where time is referred to in statements it must be clearly written indicating a.m. or p.m.

If the accused was arrested on a warrant, date, time and place of execution recorded on the warrant must be the same in the statement of the person who executed the warrant. All occasions date, time, place etc: on which the warrant was taken out for execution but without success must be clearly recorded on back of warrant.

If the accused is to be summoned to court, the summons must be served three (3) clear days before the court date.

CR12 Form must be placed on file. The information in the CR14 (Remand Form) always assists the prosecutor and the court when an application for bail is made.

No file should be submitted without statements in particular the Investigator's statement. Any other statement from the Investigator should be recorded as a further statement.

Know the status and whereabouts of your accused before you attend court. This ought to be indicated in the summary. If station bail was granted, bonds must form part of the file.

Procedure to adopt when using Fingerprint Evidence

Whenever a person is identified with a crime scene by means of fingerprint, the Scene of Crime Section will inform the division concerned. No mention of fingerprint evidence should be made to the suspect or his Attorney until after charges have been laid.

As soon as the perpetrator is arrested the Investigating Officer will arrange for a formal interview (Q&A) to be conducted in the presence of his Attorney or where no Attorney is requested in the presence of 2 JP's.

The Investigating Officer will then review the facts and assess whether charges should be brought and if in doubt the advice of the Crime Officer should be obtained.

The Investigating Officer will then apply for an order under the Fingerprint Act to a Superintendent of Police and once granted the fingerprints of the suspect should be taken on a Form FP 01, by a member of the force, not below the rank of corporal (Finger Print Act 1936), once an order under the Fingerprint Act has been made by the Superintendent of Police.

Five (5) sets of prints should be taken and signed by the taker;

- One set is to be placed on the accused file to record the result of the case
- Two sets should be forwarded to the Fingerprint Bureau to apply for the accused Criminal Record.
- Two (2) sets should be forwarded to the Scene of Crime Section as soon as the Fingerprint Order is made, to allow the Fingerprint Expert enough time to prepare a Tabulation Chart for the Court. On receipt of these forms the Fingerprint Expert must examine and sign same.

NB: These two sets of fingerprints should not be written up, excepting the name, date of birth, address and signature of the accused. These will be submitted to the Court as exhibits.

- Ensure that all supportive evidence is used in a case. There cannot be too much evidence.

SECTION F

CASE FILE MANAGEMENT

- (i) Appreciation of complaint or report - This is the listening and assessing of a complaint or report, recording of statement(s) and the writing of an interim report. All relevant entries must be made in the Crime Diary/Crime Book.
- (ii) The interim report and statement(s) must be submitted through the Sub-Officer in-charge of Crime to the Divisional Detective Inspector (DDI) or directly to the DDI if the S.O.i/c Crime is absent.
- (iii) The DDI will assign an investigator to the case and forward a copy of the interim report along with his comments in a file to the Crime Officer. This file will be called the correspondence file and will move between the Crime Officer and DDI informing on the status of the investigation. All subsequent progress reports will be enclosed in this file.
- (iv) The DDI will be designated the Registrar of Case Files and will maintain a record of all cases assigned to investigators in a book which will be called the Case File Register. This Case File Register shall contain the following columns:
 - Consecutive number

- Case numbers are recorded in the Crime book
 - Offence(s)
 - The name and rank of investigator
 - Date case was assigned to investigator
 - Movement columns i.e. signature of persons handing over and receiving files
 - Remarks column i.e. general observations treating on inspection or quality control of Crime Officer, area Crime Officer and Headquarters Officer
- (v) Reporting dates will be assigned by the Crime Officer who will direct the investigation working through the DDI. The reporting dates refer to the dates for subsequent progress reports.
- (vi) Vetting of case Files - All cases coming to the DDI must be submitted to the S.O. i/c Crime who will be responsible for the vetting of all statements, documents and exhibits and the composition of case files. Any deficiencies detected by the S.O. i/c Crime must be resolved before the file is submitted to the DDI.
- (vii) Once the investigation is completed, the case file should be properly prepared and submitted to the DDI (Registrar) who will further examine the file to ensure that the file is completed.
- (viii) Files for the DPP's ruling should be sent through the relevant channels to the ACP CIB for transmission to the DPP.
- (ix) Files concerning investigation for which an arrest has not been made will be returned to the Registrar for safe keeping until an arrest is made.
- (x) Crime Officers will send case files to the courts with an official letter of submission attached. The letter of submission should have a brief summary of the facts in the case.
- (xi) The completed case file should be sent to the Crime Officer who will scrutinise and direct as to whether or not there should be further investigation where necessary. Files with outstanding statement(s) and other materials should be sent back to the DDI with the appropriate directive.
- (xii) Security of Files - The DDI must ensure that completed files are securely kept. Each DDI must be provided with filing cabinets for this purpose.
- (xiii) Responsibility of Area Crime Officer - He is responsible for inspecting all case files at the Registry on a monthly basis. He should decide if a case has been properly investigated and provide further direction if necessary. The Area Crime Officer must monitor complex investigations.

- (xiv) Movement of Case Files - The DDI (Registrar) must ensure that the movement of files and exhibits are accounted for by the signing of the appropriate names and signatures.
- (xv) Submission of Case Files to Court's Offices - All case files submitted to the Courts must be signed for in a Court Register kept by the S.O. i/c Crime.
- (xvi) Cases ending in acquittal due to faulty handling of case by the investigator or other technicalities in evidence are to be reviewed by the Crime Officer and the investigating officer interviewed.

A copy file should be compiled and retained by the investigating officer in the event the original files are lost or destroyed.

Court Attendance

- It is very important that you or a Prosecution Liaison Officer (when fully briefed) attend court on each day the matter is scheduled;
- Keep witnesses informed about the case;
- Assist with transportation of witnesses where possible;
- Be aware of the provisions of the **Criminal Justice(Administration) Act Sec 31**;
- Be on time;
- Refresh your memory and ensure copy statements are provided to witnesses to enable them to refresh their memories;
- Carry your notebook to court at all times;
- Discuss the case with the Clerk of Courts/Crown Counsel before the date the trial. In particular, Circuit Court Counsel may wish to visit the locus;
- Inform Clerk/Crown Counsel before trial date at least one (1) week before trial date of the status of the witnesses, that is:
 - whether witnesses are available or cannot be found, whether any witness is deceased;
 - Whether any witness was threatened or interfered with in anyway;

Reason - Clerk or Crown Counsel may wish to rely on the provisions of Section 34 of the **Justice of the Peace Act or provisions of the Evidence Act** to prove the case and there are certain requirements that must be complied with before case can be tried. Failure to give this type of information will result in delaying the trial or cause embarrassment to the police and the Director of Public Prosecutions. Clerk/Crown counsel based on the information supplied may wish to request a Nolle Prosequi or ask for No Order as the case may be.
- Inference with witnesses must be properly investigated and statements recorded as this is an offence which must be dealt with.
- If there is an interference with witnesses or a possibility that it is likely to happen and it may affect the witness's attendance at court then the investigating officer may wish to investigate the possibility of getting the witnesses on the Witness Protection Programme. The Investigator ought to be aware of the requirements and the procedure involved.

- The investigating Officer ought to inform Clerk/Crown Counsel of the availability of other police witnesses in the case. This must be done at least one (1) week before the trial date:
 - whether police is on sick leave or vacation, for how long and the expected date of resumption,
 - Whether police has been transferred to another parish
 - Whether police on suspension, interdiction, resigned or is deceased, so that the appropriate steps can be taken.
- The Investigating Officer must bring potential exhibits to court. Care must be taken with the handling of potential exhibits, chain of custody and storage very important as well as the labelling.

Evidence in Court – Applicable Oaths

The police must be prepared at all times to swear themselves in the Courts of Jamaica. Listed below are some of the most frequently used oaths:

(i) Circuit Court

“I swear by Almighty God that the evidence I shall give to this Court and Jury sworn between our Sovereign Lady the Queen and the Prisoner at the Bar shall be the truth, the whole truth and nothing but the truth.”

(ii) Resident Magistrates’ Court:

“I swear by Almighty God that the evidence I shall give to this Court, shall be the truth, the whole truth and nothing but the truth.”

(iii) Coroner’s Court:

“I swear by Almighty God that the evidence I shall give at this Inquest touching the death of _ _ _ _ shall be the truth, the whole truth and nothing but the truth.”

(iv) Swearing True Answers:

“I swear by Almighty God that I shall true answers make to all such questions as this Honourable Court shall demand of me.”

Oral Evidence

How cogent you are in giving oral evidence can impact on the outcome of the case. All officers must strive to:

- Supply clear and concise answers to the court
- Relate in ordinary language
- State facts, do not give opinion
- Listen carefully to questions and ensure you understand them before answering.
- If you wish to consult you notebook seek the permission of the Court.
- Exercise self control despite offensive question/comment
- Speak the truth

Things a Detective must know - Local knowledge

In order to be a successful investigator it is important to have a thorough knowledge of ones' police district, particularly in the following areas:

- Have a good knowledge of the persons who reside in your police area including the work they do;
- Know those persons who are involved in criminal activities and their associates;
- Study the Modus Operandi of the criminals that reside in your police area;
- Look out for migrant criminals;
- Acquaint yourself with the information published in the Police Gazette especially information relating to your police district, namely, persons released from prison, wanted persons, etc;
- Visit football matches, dance hall/sessions, as it is likely that wanted men will attend these social events;
- Build a good community relations image by participating in activities that will uplift the community;
- Let people have confidence in you;
- Know the area very well and its peculiarities, such as the streets and what areas are renowned for;
- Try not to make yourself conspicuous at all times, try to be covert in and around your police district;
- Know hideouts for criminals and check on them from time to time;
- Know the receivers of stolen articles;
- Know who are involved in drug peddling and their places of operations;
- Study the crime pattern analysis.